

Babu Ram v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 July 2015 · Criminal Misc. Writ Petition No. 18049 of 2015 · **FIR quashing refused; arrest to follow CrPC 41/41-A.**

HEADNOTE

On a criminal writ to quash an FIR under Section 135 of the Electricity Act, 2003, the Allahabad High Court held that the FIR disclosed a cognizable offence and refused to quash it. Arrest had not yet been made. Because a proved s.135 offence would not attract a sentence exceeding seven years, any arrest was directed to comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the petitioner may pursue compounding under the Electricity Supply Code, 2005 and Section 152 of the Act.

FACTUAL SUMMARY

Babu Ram filed a criminal miscellaneous writ petition seeking to quash FIR dated 6 July 2015, Case Crime No. 669 of 2015, registered under Section 135 of the Electricity Act, 2003 at Police Station Katara, District Shahjahanpur. He had not been arrested. His counsel argued that even if the charge were proved the sentence could not exceed seven years, so the police should not mechanically arrest him, invoking Section 41(1)(b) read with Section 41-A of the Code of Criminal Procedure.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing FIR for electricity theft

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed on a criminal writ. The petition was disposed of with arrest-procedure directions rather than by quashing the FIR. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Where arrest under s.135 has not yet been made and the offence cannot attract a sentence exceeding seven years, police must follow CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and s.152 of the Act. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE IS COMPOUNDABLE ON THESE FACTS

The Court only observed that if the offence is compoundable the petitioner may pursue Supply Code and s.152 remedies. ¶ 1